

COUNTY COURT : COUNTY OF MONROE
STATE OF NEW YORK

PEOPLE OF THE STATE OF NEW YORK,

-against-

JEFFREY BERNECKY,

Respondent.

Index No. [_____]

NYSID No. OS6430

Hearing Date: September 11, 2026, 11:30 a.m.

Before: Hon. Karen Bailey Turner, J.C.C.

APPLICATION FOR ASSIGNMENT OF COUNSEL

I. RELIEF SOUGHT

Respondent Jeffrey Bernecky wants counsel assigned to represent him at the risk-level classification hearing scheduled for September 11, 2026, and respectfully applies, pursuant to Correction Law § 168-n(3), for that assignment now — not on the eve of the hearing. Respondent requests that the Court first determine whether he was previously found eligible for assigned counsel in the underlying federal criminal proceedings and, if so, assign counsel on that basis; in the alternative, and without conceding that no such prior finding exists, Respondent applies for a finding that he is financially unable to retain counsel and requests assignment of counsel pursuant to County Law Article 18-B on that ground. Whichever path the Court uses, Respondent asks that assignment happen with enough time before September 11, 2026 for assigned counsel to actually meet and confer with him, evaluate the record described in his contemporaneously filed Demand for Disclosure and Subpoena Duces Tecum, and prepare — not counsel named the day of the hearing with no opportunity to do any of that.

II. STATEMENT OF FACTS

By letter dated July 30, 2026, the Monroe County Supreme & County Courts notified Respondent of the September 11, 2026 hearing date before this Court and enclosed a counsel-status form directing him to indicate whether he wished to have counsel appointed, had retained counsel, or already had counsel assigned, and to return the completed form no later than August 4, 2026. Respondent mailed that form himself, indicating his request for assigned counsel. That deadline has now passed, and as of the date of this application Respondent has no confirmation that the form was received or processed, and no assigned counsel has been confirmed. Respondent files this formal application in addition to the informal form, out of an abundance of caution, so that his request for counsel is squarely before this Court in a form the Court can act on directly.

The Board of Examiners of Sex Offenders' recommendation package, forwarded under cover memorandum dated July 23, 2026, itself advises Respondent that he "will be advised of the right to be represented by counsel at the hearing and that counsel will be appointed if it is determined that [he is] financially unable to retain counsel."

Respondent was the subject of two prior federal criminal proceedings in the United States District Court for the Western District of New York: a 2012 conviction, Docket No. 6:11-CR-06045, and a 2018 conviction, Docket No. 6:18-CR-06018-DGL-MWP. Respondent does not presently have in hand a docket entry or order reflecting whether he was found eligible for appointment of counsel under the Criminal Justice Act, 18 U.S.C. § 3006A, in either proceeding; if the Court's own records or the Clerk's file contain such a finding, Respondent asks that it be used as the basis for assignment under the first path set out below. Respondent is, in any event, currently unable to retain counsel and is prepared to submit a financial affidavit setting out his income, assets, and expenses in support of a finding of financial inability under the second, independent path.

The hearing is scheduled for September 11, 2026. With the counsel-status deadline already passed and no confirmed appointment in place, immediate action on this application is necessary to allow assigned counsel a meaningful opportunity to prepare, including to pursue the disclosure and, if necessary, subpoena relief sought in Respondent's contemporaneously filed Demand for Disclosure and Subpoena Duces Tecum, and to make use of the adjournment sought in Respondent's contemporaneously filed motion if the demanded materials cannot otherwise be reviewed in time.

III. STATUTORY BASIS

Correction Law § 168-n(3) provides two independent, mandatory paths to assignment of counsel in a SORA risk-level classification proceeding.

First: "Upon receipt of the board's recommendation, the sentencing court shall determine whether the sex offender was previously found to be eligible for assigned counsel in the underlying case." Correction Law § 168-n(3). Where such a finding was previously made, "the court shall assign counsel to represent the offender, pursuant to article eighteen-B of the county law." *Id.*

Second, and independent of the first: "If the sex offender applies for assignment of counsel and the court finds that the offender is financially unable to retain counsel, the court shall assign counsel to represent the sex offender pursuant to article eighteen-B of the county law." *Id.*

Both paths are mandatory once their predicate is shown — the statute says "shall assign," not "may assign." The statute further places the burden on the Court to make the threshold determination "upon receipt of the board's recommendation," which was forwarded to the Court and to Respondent on July 23, 2026. This application is accordingly not premature; given the passage of the August 4, 2026 counsel-status deadline without a

confirmed resolution, it is overdue.

Assignment now, rather than on or immediately before the hearing date, is necessary so that counsel has a meaningful opportunity to prepare. That preparation includes meeting and conferring with Respondent, reviewing the Board's recommendation package, pursuing the disclosure and subpoena relief sought in Respondent's accompanying Demand for Disclosure and Subpoena Duces Tecum, and, if the materials sought cannot be obtained and reviewed before September 11, 2026, making use of the adjournment sought in Respondent's accompanying motion. Counsel assigned on or immediately before the hearing date, with no realistic opportunity to do any of that, would be assigned in name only; this application and its companion motion to adjourn are intended to avoid exactly that outcome.

IV. WHEREFORE

WHEREFORE, Respondent respectfully requests that this Court:

1. determine, pursuant to Correction Law § 168-n(3), whether Respondent was previously found eligible for assigned counsel in the underlying federal criminal proceeding(s), and if so, assign counsel to represent him pursuant to County Law Article 18-B;
2. in the alternative, and upon Respondent's application under Correction Law § 168-n(3), find that Respondent is financially unable to retain counsel and assign counsel to represent him pursuant to County Law Article 18-B;
3. direct that any such assignment occur with sufficient time before September 11, 2026 for assigned counsel to meet with Respondent, review the record, and prepare, consistent with the relief sought in Respondent's contemporaneously filed motion to adjourn; and
4. grant such other and further relief as the Court deems just and proper.

Dated: [____], 2026
Rochester, New York

Respectfully submitted,

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